

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

HOUSE BILL NO. 1108
(Representatives Hager, Murphy)
(Senator Mathern)

AN ACT to amend and reenact section 25-03.1-34.2 of the North Dakota Century Code, relating to interstate contracts for treatment of mental illness or a substance use disorder; and to declare an emergency.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. AMENDMENT. Section 25-03.1-34.2 of the North Dakota Century Code is amended and reenacted as follows:

25-03.1-34.2. Interstate contracts for treatment of mental illness or a substance use disorder.

1. For purposes of this section, "bordering state" means Minnesota, Montana, or South Dakota.
2. Unless prohibited by another law and subject to the exceptions in subsection ~~34~~, the department may contract with ~~any~~:
 - a. ~~An~~ appropriate treatment or detoxification facility in a bordering state for the treatment of mental illness or substance use disorders or for providing substance use disorder detoxification services for residents of North Dakota. ~~The department may also contract with any; or~~
 - b. A bordering state to allow for a public or private agency or facility to provide treatment of mental illness or substance use disorders or to provide substance use disorder detoxification services in North Dakota to residents of a bordering state.
3. An individual who receives treatment for mental illness or a substance use disorder or who receives substance use disorder detoxification services in another state under this section is subject to the laws of the state in which treatment or detoxification is provided. An individual who receives treatment or detoxification in another state under this section must be informed of the consequences of receiving treatment or detoxification in another state, including the implications of the differences in state laws.
- ~~3.4.~~ A contract may not be entered under this section for treatment or detoxification to ~~individuals~~an individual who:
 - a. ~~Are~~is serving a sentence after conviction of a criminal offense;
 - b. ~~Are on probation or parole;~~
 - c. ~~Are~~is the subject of a presentence investigation; or
 - d. ~~Have~~
 - e. Has been committed involuntarily in North Dakota under chapter 25-03.1 for treatment of mental illness or a substance use disorder, except as provided under subsection ~~56~~.
- 4.5. Contracts entered under this section must, at a minimum:
 - a. Describe the services to be provided;
 - b. Establish responsibility for the costs of services;

- c. Establish responsibility for the costs of transporting ~~individuals~~ an individual receiving services under this section;
 - d. Specify the duration of the contract;
 - e. Specify the means of terminating the contract;
 - f. Specify the terms and conditions for refusal to admit or retain an individual; and
 - g. Identify the goals to be accomplished by the placement of an individual under this section.
- 5.6. The department may enter negotiations with appropriate personnel of a bordering state to develop an agreement that conforms to the requirements of this section. An agreement with a bordering state may enable the placement in North Dakota of ~~individuals~~ an individual who ~~require~~ requires detoxification services, ~~are~~ is on an emergency ~~hold~~ hold, or who ~~have~~ has been involuntarily committed as mentally ill or having a substance use disorder in a bordering state and enable the temporary placement in a bordering state of ~~patients~~ a patient who ~~require~~ requires detoxification services or who ~~are~~ is on an emergency ~~hold~~ hold in North Dakota under chapter 25-03.1.
7. An agreement with a bordering state must ~~provide that the~~ specify that:
- a. North Dakota courts retain jurisdiction over North Dakota residents, and ~~that the~~ bordering state affords to North Dakota residents the rights afforded to the residents under North Dakota law; and
 - b. Responsibility for payment for the cost of care of a resident of a bordering state remains with the bordering state of which that individual is a resident and the cost of care of a North Dakota resident remains with the state of North Dakota.
8. Individuals committed by a court of a bordering state and placed in North Dakota facilities continue to be in the legal custody of the bordering state. The bordering state's laws governing length of commitment, re-examinations, and extension of commitment must continue to apply to these residents. In all other respects, residents of a bordering state placed in North Dakota facilities are subject to North Dakota laws. ~~An agreement with a bordering state must specify that responsibility for payment for the cost of care of a resident of a bordering state remains with the bordering state of which that individual is a resident and the cost of care of a North Dakota resident remains with the state of North Dakota.~~
9. This section applies to detoxification services ~~regardless of whether the services are provided on a voluntary or involuntary basis.~~
10. A public or private entity entering an agreement with a bordering state under this section shall provide the department a copy of the agreement and any future agreements or amendments within thirty days of the date of entering or amending the agreement.

SECTION 2. EMERGENCY. This Act is declared to be an emergency measure.

Speaker of the House

President of the Senate

Chief Clerk of the House

Secretary of the Senate

This certifies that the within bill originated in the House of Representatives of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as House Bill No. 1108 and that two-thirds of the members-elect of the House of Representatives voted in favor of said law.

Vote: Yeas 89 Nays 0 Absent 5

Speaker of the House

Chief Clerk of the House

This certifies that two-thirds of the members-elect of the Senate voted in favor of said law.

Vote: Yeas 46 Nays 1 Absent 0

President of the Senate

Secretary of the Senate

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,
at _____ o'clock _____ M.

Secretary of State